

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT MOTION TO EXTEND BRIEFING AND OTHER DEADLINES

Complainant Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents”) (collectively, “the Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby file this Joint Motion to Extend Briefing and Other Deadlines (“Motion”) and in support thereof state that good cause for the requested extension exists, as follows:

1. On June 8, 2023, the Presiding Officer entered a Scheduling Order (“Schedule”) with the following deadlines relevant to this Motion:

- August 1, 2023 Complainant to identify expert witnesses, if any.
- August 7, 2023 Depositions of fact witnesses may begin.
- August 23, 2023 Report of Complainant’s experts, if any, to be provided to Respondent.
- September 1, 2023 Respondent to identify rebuttal expert witnesses, if any.
- September 12, 2023 Last date to serve supplemental discovery requests.
- September 22, 2023 Respondent to provide Complainant with rebuttal experts’ reports, if any.
- October 2, 2023 Depositions of expert witnesses may begin.
- October 19, 2023 Close of discovery.
- November 30, 2023 Complainant’s initial brief, proposed findings of fact, and appendix.
- January 12, 2024 Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
- February 2, 2024 Complainant’s reply brief and responses to proposed findings of fact.

2. The Parties remain respectful of the deadlines set forth in the Schedule, and to date have worked together diligently and collaboratively to structure (and agree on, to the extent possible at this early stage) both the overall scope and the particulars of fact discovery in this action, as reflected by the Parties' recently filed Stipulated Preservation Plan and Consent Motion for Entry of Protective Order and the detailed ESI Protocol filed herewith.¹

3. This proceeding, however, involves a significant claim for reparations—over \$30 million including interest—so accordingly requires and deserves discovery commensurate with the demand. The Parties have exchanged extensive requests for production of documents (as well as other discovery requests), and it has become clear to the Parties that such discovery cannot reasonably be accomplished within the 150 days set forth in the current Schedule.

4. The document requests here are especially expansive because they include not just relations between Complainant and Respondents, but also between each of them and a substantial number of third parties.

5. No actual document searches have begun as yet, as the Parties have been very busy negotiating the recently submitted Preservation Plan,² Protective Order, and the pre-requisite ESI Protocol³ filed herewith, which the Parties intend to govern the collection, review, and

¹ In addition to regular email communication sharing drafts and redlines of the documents discussed above, the Parties met and conferred regarding discovery via videoconference on June 21, June 23, July 12, and July 21.

² The Preservation Plan reflects measures Complainant's counsel currently is taking to preserve Complainant's data and documents in light of its pending bankruptcy petition. In that connection, Complainant has engaged a forensic data/e-discovery firm, and Complainant's counsel has held dozens of meetings with employees of Complainant to collect and preserve documents, communications, and data relevant to this action as Complainant winds down in bankruptcy.

³ The Parties have met in good faith and reached agreement on a majority of the issues raised in the ESI Protocol and intend to move forward with discovery on the agreed areas. The Parties

production of documents and ESI in response to the Parties' respective discovery requests, including proposed date ranges, custodians, and search terms. The ESI Protocol anticipates collection and review of documents from 48 custodians for a period dating back to at least January 2020, and possibly to January 2017. As a result of the necessarily large number of custodians and the significant time period implicated by the Parties' claims and defenses in this action, and despite efforts by the Parties to limit the scope of discovery and their respective burdens through negotiated search terms, the Parties nonetheless anticipate a large volume of documents to be reviewed for relevance, attorney-client privilege, and confidentiality prior to production.

6. Although, as reflected in the ESI Protocol attached hereto, the Parties have successfully negotiated narrowed terms for the electronic searches, the prospect going forward will remain time consuming and subject to uncertainty.

- a. First, the Parties need to run the agreed searches. If, however, the number of hits is unduly large, the Parties will have to agree on further narrowing measures, then repeat the new searches.
- b. No matter how many times the searches are narrowed, the resulting number of documents will be quite large, very likely in the hundreds of thousands for each party. Such documents will then need to be reviewed by respective counsel – another time-consuming task – before being produced.

4. Apart from the normal difficulties of getting from here to there, this case is subject to particular difficulties. These include: (i) the complexity of the matter; (ii) the need to include

cannot reach agreement on discovery with respect to Respondents' relationships with other shippers and will be submitting the issue to the ALJ to address.

Complainant's bankruptcy counsel in making decision, and other challenges presented by Complainant's still-pending bankruptcy petition; and (iii) challenges relating to interrogatories (discussed further below), both with respect to issues concerning depositions of Respondents' foreign personnel, and with respect to potential difficulties deposing former employees of Complainant, who will need to be personally served with subpoenas and perhaps requiring enforcement of such subpoenas. The current schedule would preclude the Parties from taking meaningful discovery in the context of this proceeding, so they would not be able to present their claims and defenses adequately in their respective briefs.

7. As noted above, the Parties have exchanged written discovery requests, including interrogatories, requests for admission, and requests for the production of documents and electronically stored information ("ESI"), as well as objections and responses to such requests. These responses were necessarily somewhat limited due to the need for a negotiated Protective Order (as recently submitted to the Presiding Officer). The Parties expect to meet and confer regarding their respective objections and responsive, in an effort to avoid embroiling the Presiding Officer in discovery disputes, but it would not be surprising if either or both of the Parties were to file discovery motions.

8. The Parties also have conferred extensively to arrive at the proposed schedule.

9. Respondents have procured from the Presiding Officer subpoenas for the depositions of eight former employees of Complainant, which have not yet been served due to complications in serving former employees, and issued notices of deposition for six additional employees. Due to developments in Complainant's bankruptcy, however, only two of those six proposed deponents remain employed with Complainant, necessitating the procurement of subpoenas for the other four. Complainant's counsel – who will be representing these four non-

party former employees in connection with the subpoenas, and who may be representing some or all of the eight former employees for whom Respondents previously procured subpoenas – will need to be served with subpoenas, afforded opportunities to respond to the subpoenas, and schedule any depositions at mutually convenient times and locations (or via mutually agreed means).

10. Due to the nature of Complainant’s claims regarding Respondents’ internal policies and practices, including with respect to shippers other than Complainant, as well as the fact that documentary discovery has not yet begun to be exchanged, Complainant’s ability at this time to identify appropriate candidates for deposition among Respondents’ employees (including in particular employees based overseas) is limited.

11. Given the scope of the Complaint, and the challenges posed by the likely large number of third-party depositions, the Parties believe it would be most effective and efficient to conduct fact depositions on the basis of a substantially complete documentary record, and not to be forced to take deposition testimony without the benefit of first having received and reviewed relevant documents and ESI for potential use in such depositions.

12. Although Complainant has complied with the current August 1, 2023 deadline to identify to Respondents potential expert witnesses already known to Complainant at this time, since no document or ESI productions have yet been made and it remains unclear to what extent and for what specific purposes expert evidence may be necessary, Complainant is not yet in a position to identify all potential expert witnesses. Respondents’ determination of an appropriate expert witness(es) necessarily depends upon Complainant’s identification of its expert witness(es) and their reports.

13. Given that the Parties are still working diligently to finalize the scope of collection and review of documents and negotiate their respective objections to discovery requests, and must still collect, review, and produce documents in preparation for what will likely be at least two dozen fact depositions, the Parties respectfully and jointly request a 90-day extension of the current discovery deadlines in this action. The Parties believe such an extension would allow for the orderly collection, review, and production of documents to be substantially completed by October 1, 2023, resulting in the following new discovery deadlines (moved approximately 90 days from the original deadline in the Scheduling Order, accounting for weekends and holidays):

- October 2, 2023: Substantial completion of non-privileged document production.
- October 30, 2023: Complainant to identify expert witnesses, if any.
- November 6, 2023: Depositions of fact witnesses may begin.
- November 21, 2023: Report of Complainant's experts, if any, to be provided to Respondent.
- November 30, 2023: Respondent to identify rebuttal expert witnesses, if any.
- December 11, 2023: Last date to serve supplemental discovery requests.
- December 21, 2023: Respondent to provide Complainant with rebuttal experts' reports, if any.
- January 2, 2024: Depositions of expert witnesses may begin.
- January 12, 2024: Close of discovery.

14. The Parties are aware of the Presiding Officer's recent Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this joint Motion, the Parties here have limited their request to the smallest amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly and to the extent possible.

15. The Parties will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues related to the collection and

production of documents located abroad or in the custody of non-parties, or to the need for testimony from non-parties (including Complainant's former employees) or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, but in the interest of full transparency, the parties wish to note such possible issues for the Presiding Officer now.

16. Further, with respect to the submission of (i) Complainant's initial brief, proposed findings of fact, and appendix; (ii) Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix; and (iii) Complainant's reply brief and responses to proposed findings of fact, the Parties respectfully request an opportunity to propose a revised briefing schedule shortly before the close of fact discovery.

17. Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

18. The Parties anticipate a significantly higher volume of documents than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. (*See id.* Docs. 17–18.)

19. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of

disagreement, on July 21, 2023 by videoconference. The Parties each agree to the relief requested in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited, pray that their Joint Motion to Extend Briefing and Other Deadlines be granted.

Dated: August 4, 2023

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Respectfully submitted,

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